

Delaware County Commissioners Meeting April 21st 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=D3-s7VZ-W9s
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Delaware County Commissioner Meeting Report

Meeting Date: April 21, 2025

Call to Order Time: 9:01 AM

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Commissioners was called to order at 9:01 AM on Monday, April 21, 2025, by the presiding officer.
- **Attendance:**
 - **Commissioner Regan** (Present)
 - **Commissioner Brham / Brand** (Present)
 - **Commissioner Henry** (Present)

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Citizen Recognition:** [00:01:31](#) Recognition of Ella Pickett for over 30 years of service to the county, currently serving as senior plat room deputy in the auditor's office.

- **Approval of Minutes:** 00:15:54 Approval of the minutes from the regular commissioner meeting on April 7, 2025.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0).
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3. Substantive Business & Board Action

- **00:02:57 Table Business: Handbook Revisions & Ordinance 2024-033**
 - **Sponsor / Presenter:** Commissioner Brham / John / Danielle (County Attorney)
 - **Deliberation Summary:** Discussion regarding the updated employee handbook and accompanying ordinance amendments. It was noted that a proposed account for retirement payouts to smooth transitions was not yet finalized by the council, but the handbook could be updated at any meeting.
 - **Action & Vote Disposition:**
 - Motion to remove handbook from the table: Approved by roll call vote (3-0).
 - Motion to approve the handbook: Approved by roll call vote (3-0).
 - Motion to remove Ordinance 2024-033 from the table: Approved by roll call vote (3-0).
 - Motion to introduce Ordinance 2024-033: Approved by roll call vote (3-0).
- **00:05:37 Solar Moratorium Update & Discussion**
 - **Sponsor / Presenter:** Commissioner Brham
 - **Deliberation Summary:** Commissioner Brham provided an update on meetings held with solar development companies (Hawthorne and Exilio), noting that current 500-foot setbacks do not preclude buildable maps. Discussions also covered potential economic development agreements, PILOT (Payment in Lieu of Taxes) considerations, property tax burdens, and impacts of state legislation (SP1) on business personal property tax depreciation.
 - **Action & Vote Disposition:** Motion to remove from table and return to table for status update: Approved by roll call vote (3-0).
- **00:12:43 Corson Uniform & Facility Contracts**
 - **Sponsor / Presenter:** Commissioner Brham / Leslie Rainard
 - **Deliberation Summary:** Review of four self-renewing uniform/facility contracts with Corson compared against a competitive analysis from Cintas. The new setup splits the contract into four separate facility agreements, cutting projected service costs in half.
 - **Action & Vote Disposition:** Motion to approve Commissioner Henry signing the four contracts with Corson. Approved by roll call vote (3-0).
- **00:14:15 Community Enhancement Project (CEP) / J Crew Landscaping Contract**
 - **Sponsor / Presenter:** Commissioner Brham / Superintendent Don
 - **Deliberation Summary:** Review of the annual landscaping maintenance contract through CEP and J Crew. With the assistance of the new building superintendent,

costs were cut nearly in half to a new annual total of \$8,889.

- **Action & Vote Disposition:** Motion to remove from table and approve: Approved by roll call vote (3-0).
- **00:16:10 Mental Health Facility Construction Project Update**
 - **Sponsor / Presenter:** Mark Manship, Project Manager, BW Construction
 - **Deliberation Summary:** Monthly progress report for March 2025. Original contract value remains \$7,996,017 with one time-extension change order. Exterior updates (water main tap, sanitary tap, detention pond overflow piping, hardy siding painting, storefront glazing) and interior rough-ins (drywall, plumbing, electrical, HVAC, fire protection) are progressing. Substantial completion is projected for July 3rd, with final administrative turnover by August 18, 2025.
 - **Action & Vote Disposition:** Received for information; no board action required.
- **00:22:27 Community Crossings Grant Bid Opening**
 - **Sponsor / Presenter:** County Highway / Tommy
 - **Deliberation Summary:** Opening of bids for road improvement projects (County Road 650 East, River Valley Road, County Road 271 East, and County Road 1200 North):
 - *First Brooks Construction:* Total bid of \$972,860.00.
 - *EMB Paving:* Total bid of \$984,235.40.
 - **Action & Vote Disposition:** Motion to take bids under advisement for staff review: Approved by roll call vote (3-0).
- **00:26:26 Letter of Interest & Property Discussion: 1315 East Main Street**
 - **Sponsor / Presenter:** Arlina Thomas / Sandra Thomas / Brian Shaw (East Central Neighborhood Association) / Lynn Thornberg / Tom Collins
 - **Deliberation Summary:** Arlina and Sandra Thomas expressed interest in purchasing the adjacent county-owned property at 1315 East Main Street (where a structure was recently demolished), noting they have maintained it and dealt with neighborhood blight for years. Representatives from the East Central Neighborhood Association spoke in support of adjacent property acquisition to prevent incompatible redevelopment. Board members noted rumors regarding potential tiny home developments or transfers to the Muncie Land Bank (MRC).
 - **Item-Specific Public Input:**
 - *Arlina & Sandra Thomas:* Requested first right to purchase the property to expand their side/backyard for safety.
 - *Brian Shaw (East Central NA):* Supported adjacent property acquisition and requested neighborhood involvement in future parcel plans.
 - *Lynn Thornberg:* Noted neighborhood precedent for selling vacant lots to adjacent owners.
 - *Tom Collins:* Highlighted historic district contexts and requested clear communication regarding redevelopment proposals.

- **Action & Vote Disposition:** Motion to request formal written proposals from all interested parties (including MRC and adjacent homeowners) to be opened at the next meeting. Approved by roll call vote (3-0).
- **00:34:30 Dispatch Training Grant Acceptance**
 - **Sponsor / Presenter:** Mr. Cummins
 - **Deliberation Summary:** Acceptance of a recurring state law grant for \$4,500 to fund dispatch staff training for the third consecutive year.
 - **Action & Vote Disposition:** Motion to accept and deposit grant funds: Approved by roll call vote (3-0).
- **00:41:43 Justice Center Lawn Care (Droopy's Lawn Care) & RFP Issuance**
 - **Sponsor / Presenter:** Commissioner Brham / Commissioner Regan
 - **Deliberation Summary:** Discussion regarding mowing services for the Justice Center grounds, including an additional 1.2 acres along the ditch line leading to Cornbread Road currently serviced by Droopy's Lawn Care. Commissioners agreed to put out a formal RFP for landscaping services while authorizing Droopy's to continue mowing under current quotes in the interim.
 - **Action & Vote Disposition:** Motion to approve interim mowing by Droopy's and issue a new RFP for Justice Center lawn care. Approved by roll call vote (3-0).
- **00:44:40 Proposed Solar & Battery Storage Ordinance Amendments (First Reading)**
 - **Sponsor / Presenter:** Danielle (County Attorney) / Commissioners
 - **Deliberation Summary:** Discussion and debate regarding three commissioner-submitted drafts to amend the solar and battery energy storage zoning ordinance. Key consensus modifications agreed upon for the first reading draft to send to the planning commission included:
 - Setting the Property Value Guarantee buffer at **one-half mile** (1/2 mile) for a duration of one year post-completion.
 - Adjusting the prime farmland conversion cap to **20%**.
 - Setting battery energy storage system (BESS) setbacks to **500 feet**.
 - Retaining personal private solar rules under existing building codes for the time being.
 - **Action & Vote Disposition:** Motion to approve amendments and forward to the Planning Commission for a public hearing. Approved by roll call vote (3-0).
- **00:57:01 Resolution 2025-07: Transmitting Solar Ordinance Amendments to Planning Commission**
 - **Sponsor / Presenter:** Danielle (County Attorney)
 - **Deliberation Summary:** Formal resolution to transmit the proposed zoning ordinance amendments regarding solar farms and BESS to the Delaware-Muncie Metropolitan Planning Commission.
 - **Action & Vote Disposition:** Motion to approve Resolution 2025-07: Approved by roll call vote (3-0).
- **01:02:18 County Highway Newsome Construction Invoice**

- **Sponsor / Presenter:** Carrie Hathaway, County Highway
 - **Deliberation Summary:** Request to approve an additional \$5,800 engineering drawing fee from Newsome Construction required for state permitting on an existing project funded via ARIT/ARPA funds.
 - **Action & Vote Disposition:** Motion to approve the invoice: Approved by roll call vote (3-0).
 - **01:10:49 County Building Air Handler Drip Pan Repair**
 - **Sponsor / Presenter:** John Culino, Management Director
 - **Deliberation Summary:** Proposals for repairing a rusted air handler drip pan at the county building:
 - *Salar Taylor:* \$18,452.00
 - *Resolve Tech:* \$14,970.00
 - **Action & Vote Disposition:** Motion to accept the lower proposal from Resolve Tech for \$14,970.00 (funded via EDIT for buildings). Approved by roll call vote (3-0).
 - **01:04:10 Unsafe Building Demolition: 5200 Burlington (Nursing Home Facility)**
 - **Sponsor / Presenter:** Tom Fouch, Building Commissioner
 - **Deliberation Summary:** Update on the abandoned, deteriorating nursing home facility on Burlington Road. The lowest bidding contractor offered a 20% discount to bring total demolition costs down to \$40,000 (excluding potential asbestos testing capped at \$10,000). The property currently owes \$11,342 in back taxes. Commissioners discussed demolishing the structure immediately, avoiding liens to protect tax sale potential, and instructing county attorneys to pursue the corporate owner/insurance policies for cost recovery.
 - **Action & Vote Disposition:** Motion to approve demolition up to \$40,000 (with asbestos testing capped at an additional \$10,000) using EDIT/ARPA revenue replacement funds, and direct county attorneys to pursue legal cost recovery. Approved by roll call vote (3-0).
 - **01:12:12 Claims, ARPA Claims, and Payroll Approvals**
 - **Payment of Claims:** \$83,966.95 (includes routine utilities, sheriff fuel, and WEX card expenditures). *Action & Vote Disposition:* Approved by roll call vote (2-1, Commissioner Brand opposed).
 - **Payment of ARPA Claims:** \$48,215.00 (includes \$8,215 administrative costs and \$40,000 for the Eaton wastewater treatment project). *Action & Vote Disposition:* Approved by roll call vote (3-0).
 - **Payment of Payroll:** \$1,040,097.74. *Action & Vote Disposition:* Approved by roll call vote (3-0).
 - **01:13:54 Meeting Recess**
 - **Action & Vote Disposition:** Motion to take a 10-minute recess at 1:15 PM. Approved by roll call vote (3-0). Reconvened at **01:25:16**.
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4. Open Public Comment / Citizen Forum

(Conducted following the recess during the public hearing and general comment segment on the solar ordinance and local matters.)

- **01:27:29 Joe Russell:** Raised questions regarding acreage definitions (under-panel vs. total acreage), reciprocal setbacks, soil classifications for prime farmland, and the duration of property value guarantees.
- **01:30:33 Linda Hansen:** Spoke on behalf of the League of Women Voters regarding meeting transparency, the procedural handling of the solar ordinance amendments during a moratorium, and public notice.
- **01:33:56 Annette Rose:** Objected to the proposed solar amendments, citing technical definitions, unworkable property value guarantees, excessive setbacks compared to state code (IC 8-1-42-10), and arbitrary acreage caps on farmland.
- **01:37:21 Holly Hanower:** Addressed the prime farmland limits, comparing food production to corn ethanol fuel production, and urged fairness for the Thomas family regarding 1315 East Main Street.
- **01:39:58 Tim Hines:** Spoke as a representative of the United Brotherhood of Carpenters representing local members, endorsing National Grid Renewables as a high-quality developer utilizing local labor and apprenticeships.
- **01:42:32 Cheryl Swingley:** Expressed frustration over the multi-year solar debate, defending farmers' property rights and proposing that the county fund property value guarantees for farmers if solar is prohibited.
- **01:43:34 Robert Tester:** Criticized the board's process regarding the solar ordinance revisions as a "bait and switch," emphasizing the benefits of solar energy for farming heritage and financial stability.
- **01:48:52 Martha Hunt:** Spoke in favor of solar energy, criticizing the on-the-fly modifications of setbacks (from 550 to 500 feet) and advocating for professional evidence-based land use planning.
- **01:51:24 Mara Hoff:** Representing National Grid Renewables, highlighted local citizen support for solar, noted that strict setbacks reduce buildable acreage to unviable levels (leaving 149 out of 1,640 leased acres), and critiqued property value guarantees as unworkable administrative burdens.
- **01:54:30 Cheryl Dawson:** Expressed appreciation for moratorium protections, drainage requirements, battery safety standards, and setbacks, suggesting parcel-based setback definitions.
- **01:56:42 Jules Carter:** Shared personal concerns regarding proximity to a proposed solar project and appreciated the board listening to resident feedback.
- **01:57:41 Tim Carter:** Highlighted the high concentration of residences (over 34 adjacent families) impacted by the Roy solar project footprint, questioning equity and property value impacts.

- **01:59:43 Mike Johnson:** Emphasized the high density of rural residential homes in affected areas, cautioned against energy grid misconceptions, and commended the commissioners' research.
- **02:03:00 Lynn Thornberg:** Commended Sonnie and Arlina Thomas for community service and questioned the practice of charging adjacent property owners demolition costs for acquired county blight properties.
- **02:05:37 Brian Shaw:** Thanked the board for considering the Thomas family's purchase request for 1315 East Main Street rather than rubber-stamping the Land Bank, and requested transparency on urban core redevelopment plans.
- **02:09:08 Stephen Hines:** Commended commissioners on ordinance work, questioned why solar developers oppose property value guarantees if confident in property values, and criticized developer pushback on setbacks.
- **02:10:25 Tom Collins:** An architect discussing affordable net-zero housing projects in Indianapolis with rooftop solar, noting positive property value impacts and urging the board not to overly restrict residential rooftop solar with crude setbacks.

5. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - Executive session rescheduled from 11:00 AM to Wednesday at 1:00 PM.
 - Acknowledged defeat of State Senate Bill 425 regarding state preemption of local zoning.
 - Reminder of upcoming Walnut Street closure for water main work.
 - Dependent health insurance audit deadline set for **May 1st**; non-responsive dependents will be removed.
 - Noted applicability of the Millie Morgan Act regarding PERS retirement draw options for eligible active government employees.
 - Update on Justice Center parking lot repairs and staging zones.
- **Adjournment:** Motion to recess/adjourn. Approved by voice/roll call vote.

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